REPLY BRIEF AND SUPPLEMENTAL APPENDIX FOR APPELLANT

United States Court of Appeals

FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 15487

WILLIAM P. ROGERS, APPELLANT,

v.

CHENG FU SHENG AND LIN FU MEI, APPELLEES

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

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United States Attorney.
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United States Court of Appeals
For the
District of Columbia Circuit

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ARGUMENT

I. The "State Department's policy" is consistent with appellant's position

Appellees first seek to refute appellant's contention that Formosa is a "country" within the meaning of Section 243(a) of the 1952 Immigration and Nationality Act, by seizing upon excerpt from a State Department Bulletin (Br. 5), which declares, *inter alia,* "Neither this agreement [Japanese Peace Treaty, effective April 28, 1952] nor any other agreement thereafter has purported to transfer the sovereignty of Formosa to China."[1] Upon this fact and reference to the District Court's dictum that going "beyond the [aforementioned] expressions of the Department of State might cause embarass-

[1] 39 Department of State Bulletin No. 1017, December 22, 1958, pp. 1005–1011, at 1006.

ment or complications insofar as that Department is concerned" (Br. 5) appellee's conclude (Br. 6):

> "In effect, appellant seeks a redetermination by this Court of the State Department's Policy."

This restatement of appellees attempted syllogism, which is devoid of reference to appellant's contentions, suffices to reveal inherent error in their deduction. Quotations, out of context, regarding the scope of existing bilateral agreements do not negate realities which are not, *per se,* formalized in such agreements.

Moreover, appellees' use of the *bare* excerpt from the Bulletin not only advocates appellant has urged a position contrary to the State Department, but also distorts the true and complete "elements * * * of law"[2] concerning Formosa. When the germane portions of the Bulletin are read, it is patent appellant's position is consistent with declarations of the State Department.

Thus, in his main brief, appellant asserts: (1) "the United States recognizes the Government on Formosa[3] as the legitimate government of China, and * * * that is the political power to which appellees owe allegiance;"[4] (2) the "government [on Formosa] has *de facto* sovereignty or control over the island of Formosa" (Br. 10–11); (3) "Formosa has fixed geographic boundaries and a government [present thereon] having [physical] possession and [effective] dominion over its territory;" and (4) "The United States regards it, and it is treated, as an international person" (Br. 13). Thereafter, appellant again alluded to the *de facto* sovereignty which the Republic of China maintains on Formosa; conceded that Formosa has not been annexed to the mainland of China or the Communist Government thereon, and denied the materiality thereof, thusly (Br. 13):

> "The fact that [Formosa's] international status may be unsettled because no final treaties have been signed

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[2] *Id.*, at 1005.

[3] The Government on Formosa *is* the Government of the Republic of China.

[4] This fact is indisputable from the record.

> does not in any way detract from its [de facto] sovereignty or make it less than a country."

A cursory reading of the entire Bulletin makes it abundantly clear that appellant's position referenced above is the true, complete and accurate position of the State Department.[5]

II. The failure to transfer the sovereignty of Formosa to China is indicative of the *de facto* sovereignty of Formosa

As appellant noted, initially, in his main brief (Br. 7), "The issue is not whether Formosa is a part of China [as the District Court decided], but whether Formosa is a country within the meaning of that term as used in the 1952 Immigration Act." The fact that Formosa is not a part of the China mainland or was not ceded thereto is not beneficial to appellees, but is a persuasive factor in support of the proposition that *de facto* sovereignty is exercised by the Republic of China on Formosa. The Greek Government, exiled in England, was a "country" to which a Greek citizen may be deported.[6] *A fortiori,* the Government of the Republic of China on Formosa, presently under the physical control of no other government, is a "country" to which appellees may be deported within the meaning of the Act. It was because of the "open hostilities" inflicted by the Chinese Communists[7] upon the "Chinese Government"—the "Government of the Republic of China"—that the latter, recognized by the United States as such, moved its offices about one hundred miles from the China mainland to Taipei, Formosa, which in December 1949, "became the provisional capital of China."[8] The United States still recognizes the Government of the Republic of China as existing on this same Formosa.

Hence, the geographical location and international status of Formosa, coupled with its physical possession by the Government of the Republic of China, exercising *de facto* sovereignty over the island, recognized by the United States, shows

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[5] *Id.* 1005–1011.

[6] *Delany* v. *Moraitis*, 136 F. 2d 129 (4th Cir. 1943).

[7] People's Republic of China.

[8] 39 State Department Bulletin, *supra*, at pp. 1006, 1011.

that Formosa is a "country" to which appellees may be deported, within the meaning of the 1952 Immigration Act.[9]

III. The subject matter and terms of the act, legislative history, judicial precedents and subsequent legislation show conclusively that Congress intended Formosa to be a "country" within the meaning of the act

Appellees urge that the term "country" is to be given "the narrowest of several possible meanings" (Br. 21).[10] They would limit the meaning of "country" to one of *de jure* "sovereignty over the territory in question" (Br. 9)—only one of the *possible* meanings recognized by the Supreme Court in *Burnet* v. *Chicago Portrait Co.*[11] Appellee's would exclude the governmental concept of country (Br. 9) found to exist in *Delany* v. *Moraitis, supra.*

Contrary to appellees' contentions the term "country," like the term " 'foreign country' is not a *technical* or artificial one, and the sense in which it is used in a statute must be determined by reference to the *purpose* of the particular legislation." [12] (Italics added.) The overriding *purpose* of Chapter 5 of the 1952 Act, including Section 243(a), is a mandate to the Attorney General, which is contained in Section 241(a)[13] providing that certain categories of aliens, which include appellees, "shall upon the order of the Attorney General be deported * * *" In keeping with the mandate of Section 241(a), Section 243(a) provides, with certain exceptions, the order of selecting the "*places* or *countries*" to which an alien may be deported. See *United States ex rel. Moon* v. *Shaughnessy,* 218 F. 2d 316, 319 (2d Cir. 1954), wherein the Court, in effect, expressed approval of a deportation to Formosa and held the

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[9] *Delany v. Moraitis, supra.* Contrary to appellees' position, the reasoning of the court therein is not restricted to deportations occurring when the United States is at war. 136 F. 2d at 131–132.

[10] *Fong Haw Tan* v. *Phelan,* 333 U.S. 6, 10 (1948), cited by appellant to support this proposition is here misplaced. That case dealt with the rule of construction concerning the existence of two possible *grounds* for deportation—not as here, with the question of where a deportable alien can be sent.

[11] 285 U.S. 1, 5 (1932).

[12] *Id.*

[13] 8 U.S.C. § 1251(a).

term " 'country' is not necessarily to be given [a] limited meaning." Particularly is this true when, as Judge Matthews ruled subsequent to the instant decision below, "such adoption would tend to achieve and not to defeat the aims [or purpose] of the 1952 Immigration and Nationality Act." [14]

The same rule of statutory construction was comparatively recently observed by this Court, sitting *en banc*:[15]

> "The reason of the law, as indicated by its general terms, should prevail over its letter, when the plain purpose of the Act will be defeated by strict adherence to its verbiage." [16]

The Supreme Court most recently employed the doctrine while construing the wire tapping statute (47 U.S.C. § 605) in *Rathbun* v. *United States*, 355 U.S. 107, 109 (1957):

> "Every statute must be interpreted in the light of reason and common understanding to reach the results intended by the legislature."

Previously, the late Chief Judge Stephens had elaborated upon the doctrine thusly [17] (92 F. 2d at 558):

> "If the words of a statute are plain there is ordinarily nothing to construe. The intent of the legislature will be found from the words. If, however, words in themselves plain are inconsistent with the spirit or purpose of an act, they may be construed harmoniously therewith. Also, if extreme hardship will result from a literal application of the words, this may be taken as evidence that the legislature did not use them literally. For such reasons as these permissive words may be given a mandatory meaning and mandatory words a permissive one. These rules are elementary."

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[14] *Ying et al* v. *Rogers* —— F. Supp. —— (D.C.D.C., C.A. No. 2927–59, decided February 10, 1960), following the *complete* reasoning of the Supreme Court in *Burnet* v. *Chicago Portrait Co.*, *supra*, 285 U.S. at 5 (1932).

[15] *Ladrey* v. *Commission on Licensure, etc.*, 104 U.S. App. D.C. 239, 261 F. 2d 68 (1958), cert. denied, 358 U.S. 920.

[16] *Pickett* v. *United States*, 216 U.S. 456, 461 (1910); *United States* v. *Petrillo*, 332 U.S. 1, 7 (1947).

[17] *Ballou* v. *Kemp*, 68 App. D.C. 7, 92 F. 2d 556 (1937).

Significantly, the Supreme Court said in *Burnet* v. *Chicago Portrait Co., supra,* at 7:

> "In construing legislation providing for the deportation of aliens 'to the country whence they came,' *the place of* emigration affords the *dominant* consideration." (Italics added.)

Thereafter, the Court construed its holding in *Mensevich* v. *Tod,*[18] noting, "The evident *purpose* of the statute determined the significance to be attached to the expression."

In *Delany* v. *Moraitis, supra,* the Fourth Circuit cited *Mensevich* v. *Tod, supra,* as holding that "the term 'country' as used in the statute must be construed, ordinarily, to refer to the *territory* from which the alien came." (Italics added.) 136 F. 2d at 130. The Fourth Circuit noted, however, that possession of territory is not the only criterion, but that the existence of a *foreign government* is necessary for deportation. Otherwise arrangements could not be made therefor. The court also placed emphasis upon the "exercise of foreign power" and recognition of the *government* by the United States as important criteria in determining whether a "country" existed within the meaning of a deportation statute. *Id.,* at 131.

Finally, in sustaining an order of deportation of the alien to the Greek Government in exile in England, the court stated in pertinent part, *Id.,* 136 F. 2d at 132:

> "This is not judicial legislation, as suggested by counsel for petitioner. *It is an interpretation of the meaning of the statute as applied to a situation which Congress did not foresee but which the governmental authorities must meet in its application.* "To construe statutes so as to avoid results glaringly absurd, has long been a judicial function. Where, as here, the language is susceptible of a construction which preserves the usefulness of the section, the judicial duty rests upon this Court, to give expression to the intendment of the law". *Armstrong Varnish Works* v. *Nu-Enamel Corp.,* 305 U.S.

[18] 264 U.S. 134 (1924).

> 315, 59 S. Ct. 191, 200, 83 L. Ed. 195; *United States* v. *American Trucking Association,* 310 U.S. 534, 543, 60 S. Ct. 1059, 84 L. Ed. 1345." (Italics added.)

Logic and reason dictate the same principles must apply to appellees' deportation to Formosa, when Congress not only could and did *forsee,* but *knew* that the Government of the Republic of China existed thereon.

Legislative history of the 1952 Act reflects Congress intended to broaden these *countries, places* or *territories* to which aliens may be deported, so that the number of "undeportables" could to be decreased.[19] In subsequent Reports both Houses of Congress referred to § 243(a) of the Act as "Place to which an alien is deported".[20] In each instance, Congress interpreted the seven subsections thereof in the following language: [21]

> "If none of the foregoing countries is willing to accept the alien, then the Attorney General is authorized to deport the alien to any of several countries without priority or preference on the basis of such factors as the *point* of embarkation, *place* of birth, *place* of last residence, the *place* which had sovereignty over birthplace." (Italics supplied.)

Moreover, the legislative history reflects, contrary to appellant's contention (Br. 20), that Congress' use of the word *place* in the second sentence of the section referred to the *countries* of Canada and Mexico, as contiguous to the United States.[22] Thus, Congress' reference to "foregoing places or countries" in subsection 7 (8 U.S.C. § 1253(a)) indicates its intention to use the word "country" in a loose sense—"not technical"—and without the "limited meaning" as appellees contend. See *United States ex rel Moon* v. *Shaughnessy, supra.*

The legislative history also reflects Congress intended to *strengthen deportation* procedures and to *cover prior loop*

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[19] S. Rep. No. 1515, *Report of the Committee on the Judiciary,* 81st Cong., 2d Sess. (1950), pp. 637–8.

[20] S. Rep. No. 1137, 82d Cong., 2d Sess., p. 31; H.R. Rep. No. 1365, 82d Cong., 2d Sess., p. 59.

[21] *Id.*

[22] See Reports of Congress, footnote 20, *supra;* pp. 31–32, 59, respectively.

holes[23] which, *inter alia,* allowed "iron curtain countries" or "* * * *foreign government*[*s*] the power to delay or defeat deportation by reason of the failure of such *foreign government*[*s*] to respond to inquiries made by the United States."[24] [Italics added.] Time limitations were provided in Section 243(a) as recommended by the Department of Justice, in order to plug the loopholes. Congress also provided penalties for those governments which, by failure to timely answer inquiries, would delay or defeat deportation. Section 243(g), 8 U.S.C. § 1253(g).

The legislative history therefore reflects that Congress also intended the "governmental concept" of "country" to be important. For how else could a "country" respond to an inquiry. *Cf. Delany* v. *Moraitis, supra.* In fact, Section 243(a) leaves no doubt that a "*Government* of the country" is to indicate its position with respect to accepting a deportable alien "into its territory."

Thus, it appears from the legislative history of the 1952 Act that *place* of emigration is still the "dominant consideration" for purposes of deportation as it was under the 1917 Act. Under the 1952 Act, a government on that *place* is essential in order to indicate a position with respect to accepting an alien. No more is required to uphold the validity of appellees deportation to Formosa.[25] The aforementioned rules of statutory construction require the rejection of appellees limited construction of "country", and acceptance of that construction which will achieve the *purpose* of the Act.

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[23] See *Joint Hearings before the Committee on the Judiciary,* 82d Cong., 1st Sess. on S. 716, H.R. 2379 and H.R. 2816, pp. 2–3.

[24] *Id.,* pp. 714–715.

[25] Appellees erroneously contend appellant concedes "sovereignty is the determinative issue" (Br. 7). No such concession was intended by the references alluded to at page 13 of appellant's brief. See Reply, Argument I, pp. 2–3, *infra.* Similarly, appellees err in stating appellant "concedes (at p. 11) that the deportation here is based on 8 U.S.C. § 1253(a)(6) * * *." As appellees acknowledge somewhat inconsistently (Br. 19), Formosa was selected because it is the "country of which such alien is a subject (,) national or citizen * * *" and the government thereon is willing to accept appellees into its territory. Moreover, if Formosa were not such a country, it is certainly "(1) * * * the country from which such alien last entered the United States" or "(2) * * * the country in which is located the foreign port at which such alien embarked for the United States * * *" or "(7) * * * any country which is willing to accept such alien into its territory."

In addition to *Burnet* v. *Chicago Portrait Co., supra; Ying* v. *Rogers, supra,* the reasoning of *Delaney* v. *Moraitis,* equally supports this view—contrary to appellees contention (Br. 17). In *Delany,* the court stated: "* * * it is well settled that statutes should be construed, if possible, so as to effectuate the purpose intended and avoid absurd consequences." 136 F. 2d at 131. The *purpose* of the deportation statute is now, as it was then, "to remove from this country an alien who is here contrary to our laws, and place him under the jurisdiction of the political power to which he owes allegiance." *Id.*

In the instant case deportation of appellees to Formosa is to no less a "country" than in *Delany.* What the court there said respecting the effect of Delany's deportation is more appropriate here, 136 F. 2d at 133:

> [Appellees are being] returned not merely to the *jurisdiction* and *power* of his country, but to the *quasi territory* which they left [and remained in the United States] in violation of our laws. (Italics added.)

The nature of Formosa, at least a *territory* in fact, and the recognition of the Government thereon by the United States, long *before* the passage of the 1952 Act, render appellant's position even more favorable than was the Government's in *Delany.* Subsequent to Judge Matthews' decision in *Ying* v. *Rogers, supra,* Judge Miner, sitting in the Northern District of Illinois also entered an order supporting appellant's position and necessarily that of *Delaney* v. *Moraitis, supra,* in declaring "4 * * * Formosa is a 'country' to which an alien may be deported within the meaning of * * * 8 U.S.C. § 1253 * * *" [26]

The record reflects Formosa is a *place* of foreign *territory,* not contiguous to the United States, which has a *foreign government* thereon in effective control. That Government of the Republic of China has indicated its willingness to accept appellees. Appellees are aliens who went to Formosa with the Government of the Republic of China when the China mainland fell under the Communist regime, served in the

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[26] *Chao-Ling Waong* v. *Pilliod* (N.D. Ill., No. 58 C 1427, order dated February 19, 1960), (S. App. 12).

armed forces of that Government of the Republic of China, entered the United States in the interest of that Government for additional training as aviators when the Mutual Defense Treaty between that Government and the United States, was, and still is, in existence. When their respective groups returned to Formosa, appellees deserted, and were found deportable.

When it is recalled that the United States recognized the Government of the Republic of China before and after being moved to Formosa; that Congress sought by the 1952 Act to strengthen deportation procedures, plug existing loopholes and to eliminate the number of undeportables; that the Government of the Republic of China had moved to Formosa two years before the Joint Hearings began, and three years before the passage of the 1952 Act, it is inconceivable that Congress intended to plug some loopholes and to *create* another. The situation suggested by appellees, and decided by the District Court, is contrary to the very *purpose* of deportation; militates against logic and common sense, and does violence to the intent of Congress.

That this is so conclusively appears from legislative action in Congress *subsequent* to enactment of the 1952 Act, concerning appellees' request for adjustment of status under the Refugee Relief Act of 1953, as amended 67 Stat. 403; 68 Stat. 1044. Pursuant to a resolution [27] opposing the granting of permanent residence to appellees, the House Judiciary Committee reported, through Mr. Walter,[28] in pertinent part:

> "The United States admits annually a considerable number of military personnel of *allied nations,* coming for training purposes and for military staff work connected with U.S. defense installations. It is the committee's considered opinion that to agree that *any national* of a *country* allied with the United States in the mutual defense effort could be granted permanent residence in the United States on the ground that he

[27] H.R. Res. No. 384, 86th Cong., 1st Sess.

[28] H.R. Rep. No. 1176, 86th Cong., 1st Sess. Mr. Walter is the same Congressman who introduced bills in the House of Representatives, sat on the Joint Hearings, and filed Reports which culminated in the enactment of the 1952 Act. See sources in footnotes 20 and 23, *supra.*

> considers himself a refugee from his *own country,* would be highly injurious to the conduct of foreign relations of this country and the very structure of our alliances as expressed in the various mutual security treaties and arrangements. Moreover, the committee does not believe that any *national* of a *country* of the free world allied or associated with the United States in a common effort designed to stem the tide of Communist tyranny may be considered a refugee within the meaning of this term as it is used in the laws of the United States.
>
> "Consequently, the committee recommends that the resolution (H. Res. 384) do pass." (Emphasis supplied.)

Thus, the Committee left no doubt that Formosa, in the interpretation of Congress is, and was intended to be at the time of enactment of the 1952 Act, a "country" within the meaning thereof.

Prior thereto, it appears that the Ninth Circuit [29] assumed that Formosa, insofar as appellees are concerned, is a "country" within the meaning of the Act. In pertinent part the court stated:

> ". . . it is unnecessary for us to determine *which* [China or Formosa] is the *country* of nationality or last residence. (Italics added.)

Hence, from the subject matter and terms of Section 243(a), rules of statutory construction, legislative history, judicial precedents, and subsequent legislative action, Formosa is, and was intended to be, a "country" within the meaning of the 1952 Act.

CONCLUSION

Wherefore, it is respectfully submitted that the judgment of the District Court be reversed.

OLIVER GASCH,
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CARL W. BELCHER,
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[29] *Sheng and Mei* v. *Barber*, 269 F. 2d 497 (9th Cir. 1959), Judge Bazelon sitting and writing the opinion for the Court.

SUPPLEMENTAL APPENDIX

UNITED STATES DISTRICT COURT, NORTHERN DISTRICT OF ILLINOIS, EASTERN DIVISION

(No. 58 C 1427)

CHAO-LING WANG, PLAINTIFF

v.

ALVA L. PILLIOD, DISTRICT DIRECTOR, CHICAGO DISTRICT, U.S. DEPARTMENT OF JUSTICE, IMMIGRATION AND NATURALIZATION SERVICE, DEFENDANT

ORDER

This matter coming on to be heard on defendant's motion for summary judgment, and the Court having had the benefit of counsels' oral argument and argument on briefs and having considered the entire record filed herein as a whole, and having weighed the contentions of both parties:

The Court does hereby find:

1. That it has jurisdiction over the subject matter and the parties herein;

2. That the Order of the Attorney General, appealed in Count I of Plaintiff's Complaint, refusing to withhold deportation on the ground that plaintiff would suffer physical persecution if deported to Formosa, is unsupported by substantial evidence;

3. That the failure of the Attorney General or his delegate to introduce at plaintiff's interrogation any other pertinent evidence or available information in denying plaintiff's petition to withhold deportation to Formosa pursuant to Section 243 (h) of the Immigration and Nationality Act of 1952, 8 U.S.C. 1253(h), constitutes a denial of due process of law guaranteed plaintiff by the Fifth Amendment of the Constitution of the United States;

4. That Formosa is a "country" to which an alien may be deported within the meaning of Section 241 of the Immigration and Nationality Act of 1952, 8 U.S.C. 1253, and therefore the Order of the Immigration and Naturalization Service directing that plaintiff be deported to Formosa appealed in Count II of Plaintiff's Complaint, is valid;

IT IS THEREFORE ORDERED AS FOLLOWS:

1. That defendant's motion to dismiss and for summary judgment as to Count I of Plaintiff's Complaint be and the same is hereby denied;

2. That defendant's motion to dismiss and for summary judgment as to Count II of Plaintiff's Complaint be and the same is hereby granted;

3. That this cause be and the same is hereby remanded to the Immigration and Naturalization Service for the purpose of taking further action in conformity with the findings and orders contained herein;

4. That defendant, Alva Pilliod, District Director, Chicago District of the Immigration and Naturalization Service is hereby restrained and enjoined from taking any action to deport plaintiff to Formosa until further order of court.

ENTER:

/s/ JULIUS H. MINER,
Judge.

Dated at Chicago, Illinois
this 19th day of February,
A. D. 1960.

U.S. GOVERNMENT PRINTING OFFICE: 1960